

MYSHULE

SCHOOL DATA PROCESSING AGREEMENT

Service provider: Orbitlane Technologies

Platform: MyShule

Document version: 2.0

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Email for contractual and privacy notices: orbitlanetechnology@gmail.com

Governing law: Republic of Kenya

This School Data Processing Agreement (the **DPA**) forms part of the MyShule service agreement between Orbitlane Technologies and each school that validly accepts it. The legal obligations in this document are binding promises when this version is activated and accepted by an authorised school representative. Its operation must be supported by the actual production environment. The provider will not activate this version until the accompanying internal release checks have been completed.

1. Parties and identification

1.1 Controller. The **School** is the educational institution whose legal identity, school identifier, authorised contracting representative and official contact are recorded in its verified MyShule institutional subscription. That institutional record is incorporated in this DPA and identifies the school entering this agreement.

1.2 Processor. **Orbitlane Technologies** is the supplier of MyShule and is referred to as the **Processor** when processing School Personal Data on the School's behalf. The full legal identity of the proprietor or registered entity operating under the Orbitlane Technologies name is the identity verified in the provider's official business registration and recorded in the corresponding MyShule service agreement.

1.3 Scope. This DPA applies to School Personal Data processed by or for Orbitlane Technologies to provide the School's contracted MyShule services. It does not govern the School's separate processing outside MyShule or Orbitlane Technologies' independent processing of its own business contact, billing or customer-support records.

1.4 Other documents. The MyShule Privacy Policy describes general privacy practices. The applicable School Service Agreement governs commercial services. If there is a conflict concerning School Personal Data processing, this DPA prevails to the extent permitted by law.

2. Definitions

2.1 Applicable Law means the Kenya Data Protection Act, 2019, the Data Protection (General) Regulations, 2021, and other binding requirements applicable to the particular processing, as amended.

2.2 School Personal Data means personal data concerning identifiable people that the Processor handles on the School's behalf in connection with subscribed MyShule services.

2.3 Controller, Processor, Data Subject, Sensitive Personal Data and Personal Data Breach have the meanings given by Applicable Law. A **Subprocessor** is a third party engaged by the Processor to process School Personal Data for the Processor.

2.4 Documented Instructions means this DPA, the School Service Agreement, settings and actions of authorised school users within contracted features, and other written or electronically recorded instructions from verified School representatives.

2.5 Production Register means the versioned record of current Subprocessors, their function, relevant processing locations, and applicable transfer arrangements provided to the School at or before institutional acceptance and updated in accordance with clause 10.

3. Roles and responsibilities

3.1 School's controller role. The School generally determines why its student, parent, guardian, staff, examination, financial and welfare records are processed. It is responsible for lawful bases, fair collection, notices, required parental or

guardian authorisations, accuracy, user permissions, instructions, retention decisions and responses to data subject requests and educational obligations.

3.2 Processor role. Orbitlane Technologies shall process School Personal Data only to deliver authorised MyShule functionality and comply with lawful Documented Instructions and this DPA. It shall not treat data supplied by a School as its own commercial asset.

3.3 Independent controller data. Where Orbitlane Technologies determines its own purposes for business subscriptions, invoices, support correspondence, compliance or security administration, it acts as an independent Controller for that distinct processing and must comply with Applicable Law.

3.4 Non-excludable duties. Each party remains independently responsible for duties that Applicable Law imposes upon it. No allocation in this DPA limits a person's statutory data protection rights.

4. Processing details

4.1 Subject matter and duration. School Personal Data is processed to operate the contracted MyShule school-management service during the active subscription and any period necessary for lawful return, deletion, restricted retention or required legal cooperation.

4.2 Nature and purposes. As detailed in Schedule A, the service supports admissions, school registers, staff and roles, subjects and timetables, examinations, report cards and analytics, attendance, school fees and payment reconciliation, parent and student portals, communications, library, transport, boarding, inventory, disciplinary and welfare operations, technical support, security and recoverability.

4.3 Categories. Schedule A identifies the relevant Data Subjects, categories of information and the Controller's rights and obligations. Services not enabled for a School do not authorise unrelated data processing.

5. Instructions and purpose limitation

5.1 The Processor shall process School Personal Data only on lawful Documented Instructions except where required by binding law. Where legally permitted, the Processor shall notify the School before undertaking such legally required processing.

5.2 The Processor shall not sell or disclose School Personal Data to data brokers, use identifiable school records for unrelated advertising, independently profile identifiable children for commercial purposes, or disclose one school's records to another without lawful authority.

5.3 If the Processor reasonably considers an instruction unlawful, it shall inform the School without undue delay, unless legally prohibited, and work with the School to resolve the concern.

5.4 Automated processing and analytics offered by MyShule must remain within the School's authorised educational purposes. Material decisions affecting students remain the School's responsibility, subject to legal safeguards for automated decision-making.

6. Confidentiality and personnel

6.1 Persons who are permitted by the Processor to handle School Personal Data must be subject to enforceable contractual or legal confidentiality obligations and appropriate need-to-know access restrictions.

6.2 The Processor shall restrict privileged and technical-support access, revoke access when it is no longer necessary, and maintain appropriate access records. The School shall likewise manage and promptly revoke permissions of its own personnel and authorised users.

6.3 Confidentiality obligations continue after a person's access ends where required by law or the relevant confidentiality agreement.

7. Technical and organisational safeguards

7.1 The Processor shall establish, maintain and periodically review measures appropriate to the scale and risks of MyShule's processing, particularly children's personal data, academic results, school payments and confidential welfare records.

7.2 The binding security standard in Schedule B covers authentication, access control, school separation, secure handling of data and credentials, monitoring, incident response, secure software changes, backups, recovery and privileged operations. Implemented controls must meet that standard; the Processor must not market unimplemented controls as live.

7.3 School separation applies throughout application permissions, APIs, database access, asynchronous jobs, report-card generation, downloaded documents, storage locations, exports and authorised administrative access. No School is granted general access to another School's records.

7.4 Security is a shared obligation: the School remains responsible for lawful user appointments, authorised guardian/student relationships and the security of its own user devices and accounts.

8. Children's information and sensitive categories

8.1 The parties recognise that School Personal Data includes information concerning minors and may include sensitive health, counselling, disciplinary, safeguarding, boarding and family records.

8.2 The School shall determine applicable lawful grounds and parental or guardian consent or authorisation requirements, provide appropriate notices and manage age-appropriate access. Acceptance of MyShule's platform terms by a student is not a substitute for parental or guardian authorisation where required by law.

8.3 The Processor shall implement risk-appropriate restrictions on sensitive records and shall not permit unrelated uses or public disclosure without lawful authority.

8.4 Both parties shall assess their responsibility for any legally required Data Protection Impact Assessment and cooperate in preparing it.

9. Rights requests and School assistance

9.1 The Processor shall provide reasonable technical assistance to the School in responding to data subject requests for information, access, correction, objection, deletion or other rights recognised under Applicable Law, considering the nature of processing and available information.

9.2 Where the Processor receives a request about School-controlled records directly, it shall promptly refer or coordinate it with the School unless the law requires otherwise. Appropriate identity and authority checks shall precede any disclosure.

9.3 The Processor shall assist the School with required risk assessments, consultations and regulatory inquiries related to the School Personal Data processed under this DPA.

10. Subprocessors and notices of changes

10.1 Prior authority. The School gives general written authorisation for the Processor to use the Subprocessors recorded in the Production Register presented with this DPA at the time of acceptance. The Processor shall not use a Subprocessor that is absent from the then-authorised register without following this clause or obtaining separate specific authorisation.

10.2 Changes. For a proposed new or replacement Subprocessor, the Processor shall notify the School through its official institutional contact or the authenticated school administration channel at least **14 calendar days** before the change, except where an urgent security or legal necessity requires shorter notice. The notice shall describe the provider, purpose and relevant processing/transfer locations.

10.3 Objection. The School may object within the notice period on reasonable data protection grounds. The parties shall work in good faith to resolve the concern by safeguards, an alternative arrangement or an appropriate service remedy. The Processor shall not assume that silence overrides a legal requirement for specific authorisation.

10.4 Flow-down protection. The Processor shall bind authorised Subprocessors through written arrangements imposing data protection obligations consistent with Applicable Law and this DPA. The Processor remains responsible to the School for its obligations concerning Subprocessors.

10.5 Independent financial providers. Banks and mobile-money operators may act as independent Controllers rather than Subprocessors when they process transactions under their own legal duties. Their role shall be assessed by the actual integration rather than automatically assumed.

11. Data location, Kenyan serving copy and cross-border transfers

11.1 The parties shall comply with Applicable Law concerning processing and storage in Kenya and transfers of personal data outside Kenya.

11.2 Basic education. For processing falling within **regulation 26 of the Data Protection (General) Regulations, 2021**, including applicable early childhood and basic education personal data, the Processor shall ensure that processing is undertaken through a server and data centre in Kenya **or** that at least one serving copy of the concerned data is stored in a data centre in Kenya, as required by that regulation. This obligation must be demonstrably satisfied before such covered processing is enabled.

11.3 Where international access, storage or transfers occur, the parties shall establish the legal grounds and necessary safeguards, including any additional requirements for sensitive personal data, and disclose relevant arrangements in the Production Register or other incorporated transfer documentation.

11.4 This clause does not state that a particular cloud region or Kenyan serving copy already exists; compliance must be technically evidenced before production activation for covered schools.

12. Personal data breaches

12.1 After becoming aware of a Personal Data Breach affecting School Personal Data, the Processor shall notify the School **without delay and, where reasonably practicable, within 48 hours**, consistent with section 43 of the Data Protection Act, 2019.

12.2 The Processor shall share reasonably available details about the nature of the incident, affected information, possible consequences and remediation, and provide further information as it becomes available.

12.3 Where the statutory threshold applies, the School as Controller is responsible for notifying the Data Commissioner without delay and within **72 hours** of awareness and for notifying affected individuals where required. The Processor shall reasonably assist with those obligations and with containment, recovery and investigation.

12.4 The notice channel is the verified institutional contact or authorised incident contact recorded for the School, with reasonable alternative channels used if the primary channel is unavailable.

13. Audits, evidence and compliance

13.1 The Processor shall provide reasonably necessary information to demonstrate compliance with the processing obligations in this DPA and Applicable Law.

13.2 The School may conduct or appoint an appropriate independent assessor to perform a reasonable audit or inspection relating to its School Personal Data. Unless an urgent incident or legal requirement calls for an earlier review, the parties will reasonably arrange the timing and scope so as not to expose other schools' records or proprietary security secrets.

13.3 The Processor may first offer relevant third-party assessment reports, security documentation, configuration evidence and written answers where sufficient; this does not remove mandatory audit or regulator rights.

13.4 Each party shall maintain required data protection records and comply with any applicable registration or notification duties to the Office of the Data Protection Commissioner.

14. Data quality and authorisation

14.1 The School is responsible for the lawfulness, completeness and accuracy of records entered by its users. The Processor shall provide agreed capabilities or reasonable assistance for authorised corrections.

14.2 The Processor shall not intentionally change substantive academic, fee, guardian or welfare records except under authorised system operations, lawful instructions or binding legal obligations.

14.3 School account authority to accept this DPA is distinct from normal dashboard permissions. Access to a Principal dashboard alone does not establish contractual authority without verification.

15. Retention, return and deletion

15.1 The School determines lawful retention needs for institutional information in accordance with Applicable Law. The Processor shall not keep School Personal Data for longer than is reasonably necessary for the relevant purpose, documented School instructions or binding legal obligations.

15.2 A school may request an export of its records during an active subscription, subject to appropriate permissions and security controls. Upon termination, the School shall choose whether its School Personal Data is returned or permanently deleted, subject to any specific legal requirement to retain certain information.

15.3 To give effect to that choice, the Processor shall provide a practical, secure return/deletion procedure, document the School's instruction, appropriately verify the requester's authority, and record completion. Retained copies required by law shall be isolated from ordinary use, used only for the required purpose and removed when no longer legally necessary.

15.4 School-specific retention periods and the operative export window, deletion timelines and backup lifecycle shall be published in the versioned **Retention and Exit Schedule** referenced in Schedule C and made available to the School **before acceptance**. A schedule cannot silently extend retention beyond Applicable Law or be changed materially without appropriate notification and lawful agreement.

15.5 Where a relevant retention or deletion period has not yet been technically confirmed, it must not be presented as guaranteed to the School. The School's statutory choice of return or deletion on termination remains in force notwithstanding operational schedule details.

16. Legal requests and compulsory disclosures

16.1 Where the Processor receives a legally binding request involving School Personal Data, it shall assess the request, limit disclosure to what is lawful and necessary, and document relevant actions.

16.2 The Processor shall notify the School where legally permitted and appropriate, and shall cooperate with the School or competent authority as required by law.

17. Institutional electronic acceptance

17.1 This DPA may be accepted through MyShule's authenticated institutional onboarding or first-login legal-acceptance workflow, to the extent that electronic contract formation satisfies the applicable legal requirements.

17.2 Only an individual whose authority to bind the School has been verified against the institutional subscription/onboarding records may accept this DPA for that School. The platform shall determine the appropriate agreement from those records, not from a manual user-type switch.

17.3 The interface shall make the full DPA available for reading and require an intentional action using an unchecked institutional acceptance checkbox followed by **Agree & Continue**. A mere login, page view or preselected checkbox is not acceptance. No handwritten signature, signature pad or separate digital signing workflow is required by MyShule as part of this process.

17.4 The Processor shall preserve an auditable record of the School ID, the verified accepting user, the exact immutable DPA version/content reference, acceptance event, timestamp and appropriate security context. Institutional acceptance is distinct from any personal Terms of Use acceptance.

17.5 If a specific law or circumstance requires an additional formality for the particular agreement, MyShule shall not represent checkbox acceptance alone as satisfying that requirement. The Parties shall comply with the applicable legal condition before treating the agreement as binding.

18. Term, amendments and survival

18.1 This DPA begins when a valid authorised institutional acceptance is recorded and continues while the Processor handles School Personal Data under the Service Agreement.

18.2 Material changes to contractual processing terms shall be versioned and notified, and renewed institutional acceptance shall be obtained where legally or contractually required. A previously accepted version shall remain accessible for audit and dispute purposes.

18.3 Confidentiality, legal retention, return/deletion, audit assistance and other obligations intended to continue shall survive termination as necessary.

19. Liability and governing law

19.1 Each party remains responsible for its own acts, omissions, breaches and statutory obligations. Applicable limitations of liability are governed by the Service Agreement to the extent legally permissible; nothing excludes a liability or data subject right that cannot lawfully be excluded.

19.2 This DPA is governed by Kenyan law. Disputes shall be addressed under the lawful procedure in the Service Agreement, without restricting the powers of the Data Commissioner or competent Kenyan courts.

20. Contact and service notices

Service provider: Orbitlane Technologies - MyShule

Official email: orbitlanetechnology@gmail.com

Country: Kenya

The School's contracting details and notice address are those maintained in its verified institutional subscription record. The Processor's complete registered legal particulars are those maintained in its official business registration and incorporated service agreement. Notice by email or authenticated school administration channel is valid to the extent permitted by law and the Service Agreement.

SCHEDULE A - PROCESSING SPECIFICATION

Controller: The School identified in the institution's verified subscription record.

Processor: Orbitlane Technologies as identified in the provider's official registration and service agreement.

Subject matter: Provision of the contracted MyShule school management services.

Duration: Subscription term and any legally required or agreed return, deletion or restricted retention period.

Nature of operations: Collection, registration, structuring, storage, retrieval, viewing, correction, assessment, calculation, analysis, transmission, authorised sharing, reporting, export, backup, restriction and deletion.

Purposes: Admissions and enrolment; class, stream and timetable administration; examination marks, report cards and educational analytics; fee invoicing, collections and payment reconciliation; attendance, staff, parent and student portals; communications; library, boarding, inventory and transport; health, counselling and discipline functions where enabled; account security, maintenance, support and disaster recovery.

Data subjects: Current and former learners (including minors); parents and guardians; school employees, teachers, administrators and other authorised school contacts.

Personal data: Names, admission numbers, school identifiers, classes and subjects, permitted contact details, guardian relationships, attendance, marks, reports, fee balances, invoices, transaction references and statements, staff assignments, role permissions, relevant communications, account identifiers and relevant technical metadata.

Potentially sensitive data: Health, counselling, disciplinary, safeguarding, family and other welfare data only when relevant modules are lawfully enabled.

Controller rights: Determine lawful purposes, give instructions, manage user permissions, exercise audit and inspection rights, request compliance assistance, and elect data return or deletion at termination.

Controller obligations: Identify lawful basis, provide notices and necessary guardian authority, ensure lawful and accurate records, review roles, adopt retention instructions and respond to data subjects and regulatory authorities.

SCHEDULE B - CONTRACTUAL SECURITY STANDARD

This Schedule specifies the security outcomes the Processor must maintain; it is not a claim that a named vendor feature or optional control already exists.

B1. Authentication: Appropriate protection against unauthorised logins, secure credential handling and account recovery, and controlled privileged access.

B2. Authorisation: Server-side enforcement of school membership and task-specific permissions for users, including those with multiple dashboards or roles.

B3. Tenant separation: Prevention and testing of unauthorised cross-school access through databases, APIs, reports, background processing, document downloads, object storage and administrator tools.

B4. Transport and storage security: Appropriate encrypted connections, access controls and safeguards over storage, secrets and encryption keys according to the risk.

B5. Logging: Security-relevant event logging and appropriate protection of log access, integrity and retention.

B6. Secure development: Controlled releases, vulnerability and dependency management, appropriate testing, and prompt response to significant defects.

B7. Incident response: A documented process for detection, escalation, investigation, containment, recovery and statutory communications.

B8. Continuity: Appropriate protected backups and tested restoration arrangements having regard to the importance of school records.

B9. Access by personnel and providers: Least-privilege authorisation, confidentiality, review of permissions and appropriate subprocessor controls.

B10. Risk review: Periodic review of high-risk processing involving children's information, sensitive records, fees and third-party integrations.

SCHEDULE C - RETENTION AND EXIT FRAMEWORK

C1. During services. The School controls lawful record-retention decisions. Active records are retained to support subscribed services, subject to applicable legal requirements, documented institutional settings and justified retention purposes.

C2. Category-specific schedules. Before institutional acceptance, the Processor must provide the current versioned Retention and Exit Schedule covering at least: academic/admissions records; confidential welfare data; fee and payment records; user accounts and security logs; support records; generated reports and object storage; routine backups; and any legally retained records. The schedule must give the purpose, specific period or ascertainable event-based rule, review cycle and disposition for each category.

C3. Exit procedure. The School may choose return or deletion when its agreement ends, except for legally required retention. The published schedule must specify the applicable export access period, formats, authorised requesting procedure, primary-data deletion deadline, backup-expiry method and written or electronic confirmation process.

C4. Legal overrides. No retention instruction or schedule may override a binding statutory requirement. Personal data retained solely because of law shall be securely restricted to that purpose and deleted when that requirement ends.

C5. Changes. Materially longer retention or materially reduced exit rights require appropriate prior disclosure, lawful basis and any necessary agreement.

SCHEDULE D - SUBPROCESSOR AND TRANSFER REGISTER

D1. Register. The School's authoritative subprocessor list is the versioned **Production Register** presented alongside the accepted DPA in MyShule and preserved as part of the acceptance record. For each actual provider the register shall state the legal name, purpose, relevant data categories, processing/access countries, transfer safeguards and approval status.

D2. Known infrastructure for verification. MyShule's described architecture has included **Cloudflare** for web delivery and platform services and **Railway** for backend application services. These names must appear in the accepted Production Register **only to the extent that they actually process School Personal Data in production**. Database, object-storage, email/communications, observability and other relevant providers must also be identified if in use. Their legal entities, processing regions, contracts and transfer mechanisms must be verified, not assumed.

D3. Financial services. M-Pesa and banking services may operate as independent financial data controllers rather than subprocessors, depending on each specific integration. The register shall distinguish these roles where relevant.

D4. Change procedure. The authorisation, notice, objection and contractual safeguards in clause 10 apply to all changes.

Document control: MyShule School DPA, Version 2.0, 9 October 2026. The School's accepted agreement must preserve the exact text and incorporated versioned registers that were presented when acceptance was recorded.